

Agreement of Talent Referral Program (90 Days Payment Clause)

This agreement is entered between **JOB CIRCLE** and **Freelancer Recruiter** (refer as Freelancer).

JOB CIRCLE is in the business of providing recruitment services to **Client Companies / Company** (*Job Circle Tie-up Companies*) by providing them suitable candidates from time to time under the name of "**JOB CIRCLE**".

JOB CIRCLE has engaged **Freelancer** to meet their human resources requirements under following Terms & Conditions:

JOB CIRCLE is going to provide details of skill requirements to **Freelancer** in as much advance as possible.

Freelancer is going to provide Resume of candidates to **JOB CIRCLE** for review and consideration.

Freelancer is going to short list candidate profiles and informs **JOB CIRCLE** to facilitate interview.

JOB CIRCLE is going to facilitate interview & screening of candidate.

Engagement

- i) The **Freelancer Recruiter** agrees to provide recruitment services as an independent freelancer.
- ii) The **JOB CIRCLE** engages the **Freelance Recruiter** to identify and submit candidates for open positions.

Candidate Submissions

- i) The **Freelance Recruiter** agrees to submit qualified candidates who meet the specified requirements.
- ii) Candidate submissions should include accurate and complete information.

Source at Client Companies

- i) The **Freelance Recruiter** has a responsibility to mention "**JOB CIRCLE**" as the source of candidate while presenting each candidate to the **Client Company**. This emphasizes transparency and ensures that the **JOB CIRCLE** is properly credited as the source of the recruited candidates.
- ii) If the sourced candidate fails to mention '**Job Circle**' as the source to the **Client Company** under any circumstance, the **Freelance Recruiter** is not entitled to payment for that candidate.

Compensation

The **Freelance Recruiter** shall be compensated as follows:

A) Entitlement

- i) The **Freelance Recruiter** is entitled to recover professional service fees upon successful placement.
- ii) Recovery of fees is conditional on the candidate's continuous employment with the **Client Company** for a minimum period of **90 days from the date of joining**.

B) Payment Terms

- i) The **Freelance Recruiter** shall submit an invoice for professional service fees within 30 days after the completion of the 90-day period.
- ii) Payment of the fees shall be made by the **JOB CIRCLE** within 30 days of receiving the invoice.

C) Candidate's Employment Duration

For the purpose of this clause, the candidate's employment duration is calculated from the date of the candidate's official joining with the **Client Companies**.

D) Conditions

- i) The entitlement to recover professional service fees is subject to the **Freelance Recruiter's** compliance with all terms and conditions outlined in this agreement.
- ii) In the event of any breach of the agreement by the **Freelance Recruiter**, the entitlement to recover fees may be forfeited.

E) Termination of Employment

If the candidate's employment is terminated for any reason before the completion of the 90-day period, the **Freelance Recruiter's** entitlement to recover professional service fees is forfeited.

F) Expenses

Expenses incurred by the **Freelance Recruiter** for sourcing candidates are not reimbursed by **JOB CIRCLE**.

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Fees

At the bottom of every Hiring Description page, **Freelance Recruiters** can access detailed information about the payouts for a specific position.

Confidentiality

- i) The **Freelance Recruiter** agrees to maintain the confidentiality of all information provided by the **JOB CIRCLE**.
- ii) Confidential information includes but is not limited to candidate details, job specifications, and other proprietary information.

Relationship

- i) This agreement does not create an employer-employee relationship between the **Freelance Recruiter** and the **JOB CIRCLE**.
- ii) The **Freelance Recruiter** has no authority to bind the **JOB CIRCLE** or make commitments on its behalf.

Independent Freelancer Status

The **Freelance Recruiter** acknowledges and agrees that they are an independent **Freelancer Recruiter** and not an employee of the **JOB CIRCLE**.